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|   |                                                                                                                                                                                    | <p>The consequence of the late payment that Defendant owes interest per the parties' Agreement. The Agreement says that the rate of 10% interest shall be paid from the acceptance date, which was February 5, 2026, to the date of <i>receipt</i> of payment, which was March 17, 2026, at the rate of 10%. This amounts to \$24.66 per day for 41 days = \$1,011.60.</p> <p>Plaintiffs are ordered to prepare a proposed judgment for the Court's signature based on this Order and the 998 Agreement.</p> <p>Plaintiffs are ordered to serve notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 6 | <p>Murphy vs<br/>Ontario Health<br/>Education<br/>Company Inc.</p> <p>2026-01550707</p>                                                                                            | <p>Motion to Compel Arbitration<br/>Case Management Conference</p> <p>Off calendar. PAGA case has been transferred to the Complex Department CX105.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 7 | <p>Prato Properties<br/>LLC vs. Lee &amp;<br/>Associates<br/>Commercial<br/>Real Estate<br/>Services, Inc. -<br/>Irvine, a<br/>California<br/>Corporation</p> <p>2021-01234131</p> | <p>Motion for Reconsideration</p> <p>Defendant Thomas Gioia's Motion for Reconsideration is denied. Defendant Gioia moves for reconsideration of the minute order issued March 13, 2026 (ROA 343).</p> <p>When an application for an order has been "refused in whole or in part," a party seeking reconsideration under subsection (a), can make an application to "modify, amend, or revoke the prior order." The application must be made "to the same judge or court" within "10 days after service upon the party of written notice of entry of the order." The application must be "based upon new or different facts, circumstances, or law." Additionally, the application must be accompanied by an affidavit, stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc. § 1008, subd. (a).)</p> <p>Here, Defendant Gioia submits a supporting declaration from his counsel, wherein his counsel (Thomas Aplin) states:</p> <p>There was no evidence in the record that I knew before trial that Mr. McFarlin had been suspended by the State Bar. The Court of</p> |

Appeal bases its finding solely on a billing entry in Mr. Collin's motion. (Opinion, p. 7.) The Court of Appeal admits there was no evidence in the record regarding what I knew and when I knew it. The true facts are that I did not know that McFarlin had been suspended before the trial that Appellant Prato failed to attend, and, equally importantly, I had no personal knowledge about how to communicate with Ms. Prato prior to trial. I did not have her email address or telephone number and had no means to communicate directly with her at that time. (ROA 346 [Aplin Decl. at ¶ 2].)

The Court finds this declaration does not satisfy the requirements of CCP section 1008. There are no “new or different facts, circumstances, or law” that warrant reconsideration, or a different ruling on the fee motions.

“After a judgment or order is reversed on appeal,... subsequent trial court proceedings are subject to any *specific directions* given by the appellate court in connection with the remand, such as a partial retrial or entry of a particular judgment.” (Cal. Prac. Guide Civ. App. & Writs at ¶ 14:140, emphasis in original.) Where, as here, a reversal is accompanied with directions requiring specific proceeding (i.e., to reconsider the fee motions), “[t]hose directions are binding on the trial court and *must* be followed. Any *material variance* from the directions is unauthorized and *void*” (emphasis in original). (Cal. Prac. Guide Civ. App. & Writs at ¶ 14:149, citations omitted.)

In the Opinion, here, the appellate court vacated “the judgment” (which the appellate court noted refers “to the fee award, and not the underlying judgment”) and held “it was an abuse of discretion for the court to grant the (fee) motions.” (Opinion at p. 18.) The appellate court remanded the matter “with directions to reconsider respondents’ motions for attorney fees, taking into account our interpretation of section 286 herein.” (Opinion at p. 19.)

If Defendant Gioia was unhappy with the Court of Appeal’s decision, his remedy was to seek a rehearing *in the Court of Appeal*. (Cal. R. Ct Rule 8.268(a)(1).) Defendant also could have sought review from the California Supreme Court. (Cal. R. Ct. Rule 8.500(a)(1).) However, it is not appropriate for the trial court—a court of inferior jurisdiction—to “overrule” the decision of the appellate court, which has superior jurisdiction. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 455.)

The Clerk is ordered to give notice of the ruling.

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|   |                                                    | <p>Status Conference re: Appeal</p> <p>Status Conference is off calendar</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 8 | <p>Soule vs. Ascensus LLC</p> <p>2025-01535494</p> | <p>Motion to Strike Portions of the FAC</p> <p>Defendant Ascensus LLC's motion to strike portions of plaintiff Luke Soule's first amended complaint ("FAC") is denied in part and granted in part. The motion is denied as to punitive damages; it is granted with 21 days leave to amend as to injunctive relief.</p> <p>Defendant's request for judicial notice is granted as to the existence of the Individual 401(k) Trust Agreement (the "Trust Agreement") between Plaintiff's employer and Vanguard Fiduciary Trust Company that is alleged in the FAC.</p> <p>To the extent Plaintiff's declaration in support to fits opposition set forth facts outside of the FAC, the court did not consider it.</p> <p>Plaintiff's FAC<br/>Plaintiff alleges that his 401k account was transferred by Vanguard to Defendant, rather than E*TRADE as Plaintiff directed, without Plaintiff's authorization and then, when Plaintiff sought to have his account moved to E*TRADE, Defendant improperly liquidated mutual funds in his 401K account before transferring rather than transferring in kind assets. Defendant did this in accordance with its own policies, in order to make money, and despite (i) Plaintiff's repeated communication seeking in kind transfer and (ii) lacking authority to sell Plaintiff's mutual shares. [FAC, ¶¶ 17-27, 30, 31, 32-37.]</p> <p>As a result of this liquidation and delay in availability of funds, Plaintiff suffered loss because by the time the money was available to him Plaintiff could repurchase fewer shares of the same mutual funds than Plaintiff held immediately prior to the liquidation. This share shortfall resulted because the funds' net asset values increased during the period Plaintiff was involuntarily out of the market. [FAC, ¶¶ 28-29.]</p> <p>Based on these allegations, Plaintiff asserts causes of action for: (1) conversion; (2) negligence; (3) unfair business practices (violation of B&amp;P Code §17200); and (4) money had and received.</p> |